

## 26NNCV01825 26NNCV01825

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[TENTATIVE] ORDER OVERRULING DEFENDANTS' SIERRA SCHOOL OF ALHAMBRA AND SPECIALIZED EDUCATION OF CALIFORNIA, INC'S DEMURRER and GRANTING MOTION TO STRIKE

### I. INTRODUCTION

Plaintiff Angel Quezada ("Plaintiff"), a dependent adult appearing through his guardian ad litem, Noemi Carbajal, filed this action arising from an incident that occurred on August 19, 2024, while Plaintiff was attending Sierra School of Alhambra ("Sierra School"). Plaintiff alleges that Defendant Joselyn Anahi Romero ("Romero"), an employee of Sierra School and Specialized Education of California, Inc. ("SECI"), transported Plaintiff to Sierra School but failed to remove him from the vehicle upon arrival, leaving him unattended for approximately four hours in a locked van with the windows closed. Plaintiff further alleges that, after he was discovered, Defendants failed to obtain immediate medical treatment and permitted Romero to transport him home.

Plaintiff filed the First Amended Complaint ("FAC") on March 24, 2026, asserting causes of action for (1) Negligence, (2) Negligent Hiring and Retention, (3) Negligent Supervision and Training/Failure to Warn, and (4) Violation of the Elder Abuse and Dependent Adult Civil Protection Act.

Defendants Sierra School and SECI now demur to the Fourth Cause of Action for violation of the Elder Abuse and Dependent Adult Civil Protection Act and move to strike Plaintiff's requests for punitive damages and attorney's fees. The demurrer and motion to strike was filed on May 13, 2026. No opposition to either motion has been filed.

### Meet and confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On May 1, 2026, defense counsel telephonically met and conferred with Plaintiff's counsel regarding the issues raised in the demurrer. The parties were unable to resolve the issues. (Behboud Decl., ¶¶ 2-4.) Thus, the meet and confer requirement is satisfied.

## II. LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Civ. Code §3294:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(c) As used in this section, the following definitions shall apply:

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

## III. ANALYSIS

Fourth Cause of Action for Violation of the Elder Abuse and Dependent Adult Civil Protection Act

Defendants Sierra School and SECI demur to this cause of action on the ground that Plaintiff fails to allege facts sufficient to constitute a cause of action. Specifically, Defendants argue that the FAC alleges, at most, ordinary negligence or custodial neglect and fails to allege facts demonstrating the heightened culpability—recklessness, oppression, fraud, or malice—required under Welfare and Institutions Code section 15657. (Demurrer, pp. 5–7.) Defendants contend that the alleged incident constitutes an isolated custodial failure followed by an inadequate response, rather than a deliberate or conscious disregard of a known and serious danger to Plaintiff. (Id. at pp. 5–6.)

In order to distinguish Dependent Adult Abuse from Professional Negligence, there must be a showing of recklessness, fraud, malice, or oppression. (See *Covenant Care, Inc.*, supra, 32 Cal.4th at 783.) “Oppression, fraud, and malice involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405 (internal quotation marks omitted).) Recklessness requires deliberate disregard of a high degree of probability an injury will occur. (Id.) The enhanced remedies for dependent adult abuse are only available for “acts of egregious abuse against elder and dependent adults.” (Id.) There must be an allegation of authorization or ratification on the part of a managing agent in order to recover damages for dependent adult abuse against corporate defendants. (See Civ. Code, § 3294; Cal. Welf. & Inst. Code, § 15657(c).)

To plead elder/ dependent adult abuse, the plaintiff must allege “facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care [citations]; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs [citations]; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult's basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) [citations].” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 406-07.) “The plaintiff must also allege . . . that the neglect caused the elder or dependent adult to suffer physical harm, pain or mental suffering.” (Id. at 407.) “[T]he facts constituting the neglect and establishing the causal link between the neglect and the injury ‘must be pleaded with particularity,’ in accordance with the pleading rules governing statutory claims.” (Id. (quoting *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790).)

The Court disagrees. The FAC alleges facts sufficient to satisfy the foregoing requirements. Specifically, Plaintiff alleges that: (1) he is a developmentally disabled adult with non-verbal autism and is a dependent adult within the meaning of the Elder Abuse and Dependent Adult Civil Protection Act (FAC, ¶ 1); (2) Sierra School and SECI, through their employees, were responsible for Plaintiff's care, supervision, transportation, and other basic needs while he was in their custody (FAC, ¶¶ 6, 18-19, 23, 25); (3) Defendants knew that Plaintiff's disabilities rendered him dependent upon others for assistance with basic life activities, including his ability to communicate his needs and physical condition (FAC, ¶¶ 1, 18, 36); (4) Plaintiff was left unattended for approximately four hours in a locked transport van with the windows closed, where the temperature allegedly reached approximately 135 degrees Fahrenheit (FAC, ¶¶ 26-27, 35); (5) after Plaintiff was discovered flushed and sweaty, Defendants allegedly failed to obtain emergency medical treatment and instead communicated with their legal department regarding their potential liability (FAC, ¶¶ 32-33); (6) despite knowing that Plaintiff had just been left in the vehicle for several hours, Defendants permitted Romero to place Plaintiff back into the van and leave school grounds, failed to direct Romero to return so that Plaintiff could receive medical treatment, and permitted Plaintiff's return home and receipt of medical care to be delayed by approximately another hour (FAC, ¶¶ 28, 33-34); and (7) upon arriving home, Plaintiff exhibited symptoms including sweating, headache, and vomiting and was thereafter diagnosed with heat exhaustion and mild rhabdomyolysis secondary to heat exhaustion (FAC, ¶¶ 29-31). These allegations, taken as true for purposes of demurrer, are sufficient to allege that Defendants withheld care necessary to meet Plaintiff's basic needs with conscious disregard of a high probability of injury and that the alleged neglect caused Plaintiff physical harm and suffering.

Thus, the demurrer is OVERRULED.

Motion to strike

Defendants move to strike the following portions of the FAC: (1) paragraph 69, which alleges that Defendants acted willfully, despicably, and with conscious disregard for Plaintiff's rights, safety, and health, thereby entitling Plaintiff to punitive and exemplary damages under Civil Code section 3294; (2) paragraph 70, which alleges that Plaintiff is entitled to attorney's fees and costs pursuant to Welfare and Institutions Code section 15657; (3) paragraph 6 of the Prayer for Relief, to the extent it

seeks attorney's fees pursuant to section 15657; and (4) paragraph 7 of the Prayer for Relief, which seeks punitive damages with respect to the Fourth Cause of Action.

#### Punitive damages

Civil Code section 3294, subdivision (a), permits an award of punitive damages where the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. Where punitive damages are sought against a corporate employer based upon the acts of an employee, the plaintiff must also satisfy Civil Code section 3294, subdivision (b). Under that provision, an employer is not liable for punitive damages based upon the acts of an employee unless the employer had advance knowledge of the employee's unfitness and employed the employee with conscious disregard of the rights or safety of others, authorized or ratified the wrongful conduct, or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification, or act of oppression, fraud, or malice must be attributable to an officer, director, or managing agent.

As discussed above, the FAC sufficiently alleges conduct supporting an inference of conscious disregard for Plaintiff's health and safety. Plaintiff alleges that he was left unattended for approximately four hours in a locked transport van with the windows closed, where the temperature allegedly reached approximately 135 degrees Fahrenheit. (FAC, ¶¶ 26-27.) After Plaintiff was discovered, Defendants allegedly failed to obtain medical treatment despite his condition. (FAC, ¶¶ 26, 32-33.) The FAC further alleges that, rather than immediately calling 911, Stephanie Helguera, the director of Sierra School, and Amy Ochoa, a regional director, communicated with Defendants' legal department regarding their potential liability. (FAC, ¶ 33.) Defendants then allegedly permitted Romero to continue transporting Plaintiff and failed to order Romero to return so that Plaintiff could receive medical treatment, thereby delaying his receipt of treatment by approximately another hour. (FAC, ¶¶ 28, 33-34.) These allegations are sufficient at the pleading stage to support Plaintiff's allegation that the conduct was undertaken with conscious disregard for Plaintiff's health and safety.

However, the FAC does not sufficiently allege the additional facts necessary to impose punitive damages against Sierra School and SECI as corporate employers. Although the FAC identifies Helguera as the director of Sierra School and Ochoa as a regional director (FAC, ¶¶ 26, 32), it does not allege that either was an officer or director of SECI or a managing agent with authority over corporate policy. An employee's job title alone is insufficient to establish managing-agent status. (*Hellum v. Breyer* (2011) 194 Cal.App.4th 1300, 1311–1312.) Nor does the FAC identify any other officer, director, or managing agent who authorized or ratified the alleged wrongful conduct.

Thus, although Plaintiff sufficiently alleges conduct supporting an inference of conscious disregard, Plaintiff has not sufficiently alleged the corporate authorization, ratification, or managing-agent involvement required by Civil Code section 3294, subdivision (b). The motion to strike paragraph 69 and paragraph 7 of the Prayer for Relief is GRANTED with leave to amend.

#### Attorney's fees

Welfare and Institutions Code section 15657 provides for an award of reasonable attorney's fees and costs where it is proven by clear and convincing evidence that a defendant is liable for physical abuse or neglect and has been guilty of recklessness, oppression, fraud, or malice in the commission of the abuse. However, where the defendant is an employer, section 15657, subdivision (c), provides that the standards set forth in Civil Code section 3294, subdivision (b), govern the imposition of liability for attorney's fees and costs against the employer.

As discussed in connection with the demurrer, the FAC sufficiently alleges facts supporting a claim for dependent adult abuse based upon recklessness. In particular, the alleged failure to obtain medical treatment after Plaintiff was discovered following approximately four hours in extreme heat, despite knowledge of his condition, is sufficient at the pleading stage to support an inference of conscious disregard of a high probability of injury. Thus, the Court does not agree with Defendants that Plaintiff's request for attorney's fees fails merely because the FAC alleges only ordinary negligence.

Nevertheless, for the same reasons discussed above, the FAC does not sufficiently allege that an officer, director, or managing agent of Sierra School or SECI authorized or ratified the alleged conduct, as required by Welfare and Institutions Code section 15657, subdivision (c), and Civil Code section 3294, subdivision (b).

Thus, the motion to strike paragraph 70 and paragraph 6 of the Prayer for Relief, to the extent it seeks attorney's fees pursuant to Welfare and Institutions Code section 15657 against Sierra School and SECI, is GRANTED with leave to amend.

#### IV. ORDER

The Court OVERRULES the demurrer as to the fourth cause of action. The Court GRANTS the motion to strike in its entirety, with 20 days' leave to amend.

Defendants to give notice.

Dated: August 12, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT